

Rules, Policy & Equity Subcommittee Meeting Notes

May 5, 2021

4:00 to 6:00 PM via Zoom.

Join Zoom Meeting

<https://mps02155-org.zoom.us/j/96950081661>

5:08 Roll: Paul Ruseau, present; Jenny Graham, present; **Melanie McLaughlin** joining late (4:45PM)

Other attendees: Lisa Evangelista, Dr. Peter Cushing, Dr. Marice Edouard-Vincent, Suzanne Galusi, Dave Murphy, Medford Community Media, and Community members Eunice, Bill Giglio, Ron Giovino, Nadeen

1) Policy BEDH - Public Participation (update)

Paul Ruseau: sharing screen with policy

Dr. Peter Cushing: Please add Superintendent email address. Who is a constable or officer when we are in the chambers or on Zoom?

Paul Ruseau: This doesn't address the fact that people are put in the waiting room. Even muting somebody is not yet decided.

Dr. Peter Cushing: Only other suggestion, option to give person up to five minutes. Go from 3 to 2 with option to 5

Paul Ruseau: Something we don't see in the policy is a limit on all public commentary (ie. 30 minutes). I personally like to keep 3 minutes.

Jenny Graham: I don't have a problem with 3 mins necessarily as many people don't use the full 3 minutes. We do need clear procedures on how to proceed. In some cases the same person spoke many times for 3 minutes, that is more of a problem. At times 3 minutes might be necessary for people to give a complete thought. I hesitate putting in a total time limit for public participation. Whatever rules we set, I want to make sure we adhere to them.

Dr. Marice Edouard-Vincent: I am in agreement with Dr. Peter Cushing about the two minutes or up to three minutes not exceeding the three minutes. We also need to include the emails that need to be read. Would the verbiage about length of time as a medford resident be read every time? I would like clarity on this.

Paul Ruseau: The next item is the agenda - this language would go on the agenda. I agree it should be part of the agenda and read out loud.

Dr. Marice Edouard-Vincent: We are encouraging public commentary and am concerned about people not knowing of this new addition to the agenda.

Paul Ruseau: Repeating it at the meeting.

Dr. Marice Edouard-Vincent: Should we call these out as norms. Should we also have a statement “agree to disagree in respectful terms”. Add an additional statement about insuring that we use appropriate language even when presenting divergent views.

Paul Ruseau: I agree but one of the challenges is the language that the chair will be reading is quite long when including the gov’s zoom introduction. Speaking through the chair is part of Roberts Rules or order so calling out one portion and not another is up for discussion. We can amend this to be welcoming. We can suggest changes and amend in the actual meetings.

Dr. Marice Edouard-Vincent; that is ok.

Jenny Graham: I think it would be wise for us to explicitly call out that there will be a timekeeper who will be managing public participation. Speakers will get a 15 second warning when approaching the time limit. Lisa has played that role and it has been very effective. It should be standard practice.

Paul Ruseau: At the state house, there is a timekeeping screen going at all times during public participation. I certainly like it but am concerned operationally. Sounds like a role in addition to taking notes.

Dr. Marice Edouard-Vincent: I agree Lisa has done a good job doing time for us. We can recognize a time keeper to support public participation. I think there should be a one minute marker and then a 15 second warning. A designated time keeper can be provided by the superintendent’s office.

Paul Ruseau: Reading policy IIIA.paragraph 2: presentations are not meant to be a conversation about a topic. Person coming to speak does not have the chance to circumvent public meeting law. People can be concerned when we don’t respond but we are not able to respond.

Jenny Graham: I don’t have any changes.

Paul Ruseau: “Public can submit something for a presentation” what if the topic is something we don’t have the authority over.

Lisa Evangelista: Would this go into effect at the next meeting? Should we get a press release out to inform people of the proper way to present?

Paul Ruseau: That is incredibly important and will be built into our discussion about the agenda format. Process about submitting a presentation is mostly the same; adds that it must be a topic

under the authority of the school committee, submission time is the same. Authority determination of the superintendent is the same but if the supt. Decides it is not in the authority, the person can file an appeal which will be placed on the next scheduled agenda with a brief explanation of the denied topic. There are many situations where it is confusing what our authority is. There is a gray area and gives the members of the public an opportunity to explain the situation and the SC to override the superintendent.

Dr. Marice Edouard-Vincent: Personnel is never discussed on the floor. If something is denied, I can use the District Counsel if it is legally not permitted. SC can be cc'ed on the legal counsel.

Paul Ruseau: can add Supt. may seek advice from legal counsel about whether to proceed with the following appeals process. Should the counsel determine that a presentation should not proceed, the presenter will be informed.

Jenny Graham: I think that makes a lot of sense and provides assurances that we don't enter unallowed territory on the floor.

Paul Ruseau: if it is a split vote, then the presenter is given the benefit of the doubt

Melanie McLaughlin: present 4:45PM. I had the chance to read through this policy and think the changes make sense as well.

Dr. Peter Cushing: Quick question, I have heard other members say that signs are not allowed. On zoom, backgrounds can be changed at any time. There were moments I am concerned about. I am not sure that it needs to be a policy. I am thinking of the red shirts "Red for Ed" that the teachers wore. That isn't terribly different from changing the zoom backgrounds. I prefer to be on the side of free speech.

Paul Ruseau: there was a second level on this policy that I have refrained from. I felt a bit like do we go all the way or part of the way and revisit?

Jenny Graham: The majority of the people who behave in the manner of constructive dialogue. We can't be in the business of policing shirts and backgrounds. It is sticky territory. I would rather keep the faith in our residents. If it becomes a recurring issue, we can revisit it.

Paul Ruseau: The piece from the law gives the chair the ability to eject people for bad behavior.

Melanie: Did you discuss the full address component?

Paul Ruseau: I emailed the MASC how to protect victims of domestic violence from giving their address in meetings. That is an ongoing conversation and can be amended later once we get more clarity.

Melanie McLaughlin: I would also like to think about adding language about presentation requiring accommodations for communication.

Paul Ruseau: We might want to have a separate policy that applies to all policy.

Motion to Approve: Jenny Graham/Melanie McLaughlin

Jenny Graham/Melanie McLaughlin/Paul Ruseau: 3 yes: will be sent to SC for May 10 meeting for approval

2) Policy BEDB - Agenda Creation and Format for Regular Meetings of the School Committee (update)

Some language changes and some changes to the formatting of the actual agenda. Moving guest speakers up ahead is allowed but community participation stays in a fixed place.

Dr. Marice Edouard-Vincent: Could you change it to report of committees instead of subcommittees so that other meetings will be included?

Paul Ruseau: Made change.

Jenny Graham: In a prior meeting, we talked about COWs and Special Meetings being part of the consent agenda since they are attended by the whole group. Intent was this to be just the subcommittees since not everybody attends.

Paul Ruseau: That is correct. Made a change back. Continued business (old business): items tabled from previous meeting. We have a lot to learn from the City Council - numbering system for resolutions. Items don't get lost. A member can withdraw an item from the agenda if it does not require more discussion but hasn't been approved.

New Business remains the same.

Consent agenda (previously approved in full school committee): Approval of minutes from COWs special meetings and regular meetings (any meetings where all seven members are present), approval of payrolls/bills which are still listed. Motion to approve the consent agenda. Sometimes there will be an edit. Take that item out. Called specifically and the change is made to those minutes.

Melanie McLaughlin: What do you mean by special meetings?

Paul Ruseau: If a meeting is called such as when we closed the schools before pandemic. There are not many.

Reports requested; This will take a little time to get in compliance with this policy. Lists of reports that are outstanding that we have approved. Superintendent may provide updates on reports that are asked for. SC may ask that the report request is rescinded (provided elsewhere or no longer important). Only members who have asked for the report can rescind them unless the member who asked is no longer on the committee. Report policy was passed in 2019 requires a name with the report.

Next meeting: all meetings up to and including the next scheduled meeting with zoom information if available.

Jenny Graham: Next meeting part can be an informational appendix so that the chair doesn't have to read out loud.

Paul Ruseau: I added condolences as an actual item.

Melanie McLaughlin: Motion to approve

Jenny Graham: Second

Dr. Marice Edouard-Vincent: I suggest that you reverse the numbers for condolences and next meetings.

Paul Ruseau: Adjournment can be on the agenda

Jenny Graham/Melanie McLaughlin/Paul Ruseau: Three affirmative; motion to put forward to whole committee on May 10. (5:30PM)

3) Sexual Harassment Procedures (new)

Jenny Graham: Only change to this policy is the Title IX coordinator, am I correct?

Peter Cushing: when we met with counsel it was recommended we accept it wholesale. At each level there should be a Title IX coordinator. We need to clearly articulate in the student handbook.

Melanie McLaughlin: Add Curtis Tufts

Peter Cushing: We took the broiler plate and made tweaks.

Melanie McLaughlin: Was this formally referred to in the bullying policy or anywhere else?

Paul Ruseau: I am not sure if the bullying plan references this. It doesn't look like from a format perspective that it is related.

Melanie McLaughlin: Curious how they are legally differentiated?

Paul Ruseau: Looks like totally different parts of the law.

Melanie McLaughlin: I am wondering if we should add language that both policies can be referenced.

I am concerned that one could supersede the other.

Paul Ruseau: The new admin may be making changes.

Peter Cushing: Criminal harassment is the overlapping piece. There is a school based under the state law. The MASC attorneys vett these very well and have recommended that we approve this.

Paul Ruseau: We approved an update to the bullying prevention plan just because we had to approve something quickly. We will need to go through the bullying plan piece by piece. That will be the more detailed policy. This Title IX policy will be before us again as soon as next fall so we will be looking at it again.

Peter Cushing: Our staff went through significant retraining on Title IX last summer. School leaders are hoping it gets resolved in a more permanent manner.

Paul Ruseau: Melanie, Do you have specifics you would like to change

Melanie McLaughlin: I would like to see a line about the intersectionality of both bullying and sexual harassment. It may be better placed in the Bullying Policy.

Jenny Graham: How about a line at the bottom that says related policies: and then links to the Bullying Prevention.

Melanie McLaughlin: I would also offer Parents Notice of Procedural Safeguards to Special Education to go there as well.

Motion to approve: Jenny Graham/Melanie McLaughlin

Jenny Graham/MM/Paul Ruseau: Three in the affirmative. Send to SC for May 10.

Paul Ruseau: If we don't have answers to the bolded items, do the members mind if it gets held back to May 24.

Peter Cushing: I have the people identified so I don't want to delay the SH policy.

Motion adjourn: Melanie McLaughlin/Jenny Graham

Jenny Graham/Melanie McLaughlin/Paul Ruseau meeting adjourned